

CHAPTER 29

An Act to provide that certain agreements made by or between members of associations of persons occupying land used for agriculture or forestry shall be exempted from the application of Part I of the Restrictive Trade Practices Act, 1956. [3rd July, 1962]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

- 1.—(1) This section applies to any association of persons occupying land used for agriculture or forestry or both, in the case of which the following conditions are satisfied, that is to say:—
- Exemption
of certain
agreements
from
registration.
- (a) the association is registered under the Industrial and Provident Societies Acts, 1893 to 1954 or, being a company within the meaning of the Companies Act, 1948, contains in its memorandum or articles of association such provisions as may be prescribed by order of the Ministers with respect to the number of members, numbers of shares held by members, distribution of profits, voting rights or other matters; 11 & 12 Geo. 6. c. 38.
 - (b) at least ninety per cent. of the voting power is attached to shares held by persons occupying land used as aforesaid; and
 - (c) the only business, or the principal business, carried on by the association is one or more of the following, that is to say:—
 - (i) the marketing or preparation for market of produce produced by members of the association on land occupied by them and used as aforesaid (with or without similar produce not so produced);
 - (ii) the supply to such members of goods required for the production of such produce on such land;
 - (iii) in the case of an association of persons occupying land for forestry, the carrying out of forestry operations for such members on such land;

and to any association of such associations which satisfies the condition specified in paragraph (a) of this subsection and would satisfy the condition specified in paragraph (c) if references in that paragraph to members of the association included references to members of constituent associations.

4 & 5 Eliz. 2.
c. 68.

(2) Subject to the provisions of this section, Part I of the Restrictive Trade Practices Act, 1956, shall not apply to an agreement (whenever made) between members of an association to which this section applies, or between such an association and any other person, whether a member of the association or not, by reason only of any restriction accepted or treated as accepted by the association, or by members of the association or of any constituent association, for the purposes of or in connection with—

- (a) the marketing or preparation for market by the association of produce produced by such members on land occupied by them and used for agriculture or forestry (with or without similar produce not so produced); or
- (b) the supply by the association to such members of goods required for the production of such produce on such land;

and in determining whether any such agreement is an agreement to which the said Part I applies, no account shall be taken of any such restriction.

(3) The Ministers may by order direct that subsection (2) of this section shall not apply—

- (a) in relation to agreements of such classes as may be prescribed by the order; or
- (b) in relation to agreements, or agreements of any class, made by associations of such classes as may be so prescribed;

and any such order may apply to agreements made before as well as after the coming into force of the order.

(4) Any power of the Ministers to make orders under this section shall be exercisable by statutory instrument, and shall include power to revoke or vary any such order by a subsequent order; and any statutory instrument made by virtue of this section shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(5) References in this section to the Industrial and Provident Societies Acts, 1893 to 1954, and the Companies Act, 1948, include references respectively to the Industrial and Provident Societies Acts (Northern Ireland), 1893 to 1955 and the Companies Act (Northern Ireland), 1960.

2.—(1) In this Act the following expressions have the meanings hereby respectively assigned to them, that is to say:—

“agriculture” has the same meaning as in the Agriculture Act, 1947 and the Agriculture (Scotland) Act, 1948;

“forestry” includes the processing of wood for sale, but not the manufacture of articles of wood;

Interpretation,
construction,
short title
and com-
mencement.
10 & 11 Geo.
6. c. 48.
11 & 12 Geo.
6. c. 45.

“the Ministers” means the Minister of Agriculture, Fisheries and Food and the Secretaries of State respectively concerned with agriculture in Scotland and in Northern Ireland, acting jointly;

“produce” means anything (whether live or dead) produced in the course of agriculture or forestry.

(2) This Act shall be construed as one with the Restrictive Trade Practices Act, 1956.

(3) This Act may be cited as the Agricultural and Forestry Associations Act, 1962.

(4) This Act shall come into force at the expiration of the period of three months beginning with the day on which it is passed.

CHAPTER 30

Northern Ireland Act, 1962

ARRANGEMENT OF SECTIONS

Administration of Justice

Section

1. Appeals to the House of Lords.
2. Restrictions on appeals to the Court of Appeal.
3. Power of Her Majesty to transfer appellate jurisdiction of High Court of Appeal.
4. Power of Her Majesty to amend law with respect to remittals to, and removals from, county court, and destination of appeals therefrom.
5. Assistance for transaction of business in Supreme Court.
6. Assistance for transaction of business in Court of Criminal Appeal.
7. Supreme Court rules.
8. The Supreme Court rules committee.
9. Publication of certain rules and orders under Supreme Court of Judicature Act (Ireland), 1877, and parliamentary control of powers to make them.
10. Amendment of law with respect to writs of mandamus, prohibition and certiorari and information in the nature of quo warranto.
11. Reduction of number of jurors in civil proceedings.
12. Reservation of matters relating to Supreme Court not to preclude legislation by Parliament of Northern Ireland about certain matters.

Enlargement of legislative Power of Parliament of Northern Ireland with respect to Matters other than those relating to Supreme Court

13. Relaxation, for certain purposes, of restrictions on diversion of property of religious or educational bodies.
14. Abolition of prohibition of making laws taking property without compensation.
15. Restrictions on diversion or taking of property not to preclude, or ever to have precluded, legislation about security of tenure, &c.
16. Power with respect to winding up, bankruptcy, &c.
17. Power to legislate to prevent suffering by horses, &c., on exportation thereof.